



General Assembly

February Session, 2026

Raised Bill No. 387

LCO No. 2136



Referred to Committee on GOVERNMENT ADMINISTRATION
AND ELECTIONS

Introduced by:
(GAE)

AN ACT CONCERNING ELECTION ADMINISTRATION OVERSIGHT.

Be it enacted by the Senate and House of Representatives in General
Assembly convened:

1 Section 1. (NEW) (*Effective from passage*) (a) There is established a
2 Municipal Election Accountability Board, which shall be within the
3 office of the Secretary of the State for administrative purposes only, for
4 the purposes of (1) reviewing the administration of elections, primaries
5 and referenda, including the conduct of early voting, absentee voting
6 and same-day election registration, and the duties of election officials
7 under title 9 of the general statutes, in municipalities in this state
8 whenever such municipalities are referred to the board for such review,
9 (2) overseeing the administration of elections in such municipalities
10 where necessary, and (3) establishing procedural safeguards for the
11 effective conduct of such elections, primaries and referenda in such
12 municipalities. Nothing in this section shall be construed to (A) affect
13 the powers and duties of the Secretary of the State or the State Elections
14 Enforcement Commission under title 9 of the general statutes, including
15 chapter 151a of the general statutes, (B) preclude any person from
16 seeking additional remedies under title 9 of the general statutes,

17 including under chapter 151a of the general statutes, or (C) otherwise
18 affect chapter 151a of the general statutes.

19 (b) (1) The Municipal Election Accountability Board shall be
20 comprised of: (A) The Secretary of the State, or the Secretary's designee,
21 who shall be the chairperson of the board; (B) the executive director of
22 the State Elections Enforcement Commission, or the executive director's
23 designee; (C) nine members appointed by the Secretary of the State, with
24 the advice and consent of the General Assembly, as follows: (i) One
25 member who shall be admitted to the practice of law in this state and
26 who has expertise in election law; (ii) two members who shall be
27 moderators certified under section 9-229 of the general statutes, enrolled
28 in different political parties and selected from a list, provided by an
29 association representing the interests of registrars of voters in the state,
30 of five recommendations from each major party, as defined in section 9-
31 372 of the general statutes; (iii) two members who shall be registrars of
32 voters, enrolled in different political parties and selected from a list,
33 provided by an association representing the interests of registrars of
34 voters in the state, of five recommendations from each major party; (iv)
35 two members who shall be town clerks, enrolled in different political
36 parties and selected from a list, provided by an association representing
37 the interests of town clerks in the state, of five recommendations from
38 each major party; and (v) two members who shall be chief elected
39 officials of municipalities, enrolled in different political parties and
40 selected from a list, provided jointly by a state-wide organization of
41 municipal leaders and an organization that advocates for the interests
42 of small towns in the state, of five recommendations from each major
43 party; and (D) one member appointed by each of the four legislative
44 leaders, as defined in section 4-9d of the general statutes, who shall have
45 expertise in election administration or election law, provided
46 appointments under subparagraphs (C) and (D) of this subdivision shall
47 be made so that no single municipality is represented by more than one
48 member.

49 (2) Members described in subparagraphs (C) and (D) of subdivision

50 (1) of this subsection shall serve for a term of four years and until a
51 successor is appointed, and initial appointments of such members shall
52 be made not later than August 1, 2026. Members described in said
53 subparagraphs shall recuse themselves from participating in any
54 proceeding of the board on any matter in which a conflict exists due to
55 such member or the immediate family of such member being involved
56 in any matter before said board, including, but not limited to, a matter
57 concerning a town appearing before said board that a member
58 represents on said board. Any vacancy shall be filled by the appointing
59 authority for the remainder of the applicable member's unexpired term.
60 The members of the board shall serve without compensation, but shall
61 be reimbursed for expenses incurred in the performance of their duties.
62 For the purposes of this subdivision, "immediate family" means a
63 dependent relative who resides in the member's household or any
64 spouse, child, parent or sibling of the member.

65 (c) (1) Beginning on the second Tuesday of January in 2027, and every
66 month thereafter on such second Tuesday, the Municipal Election
67 Accountability Board shall hold a regularly scheduled meeting.

68 (2) All regularly scheduled meetings shall be noticed on the Internet
69 web site of the office of the Secretary of the State. In the event of any
70 review hearing or preliminary review to be held under section 2 of this
71 act, information regarding such hearing or review shall be added to
72 such notice not later than forty-eight hours prior to any such meeting.

73 (3) A vacancy on the board shall not impair the right of the remaining
74 members to exercise all powers of the board, except that a majority of
75 the total membership of the board shall constitute a quorum for the
76 transaction of business.

77 Sec. 2. (NEW) (*Effective January 1, 2027*) (a) (1) Whenever the Secretary
78 of the State or the State Elections Enforcement Commission is of the
79 opinion that a reasonable likelihood of irregularity or impropriety in the
80 administration of any election, primary or referendum in a municipality

81 exists, based on any formal or informal complaint received by the
82 Secretary or the commission from an individual, the Secretary or the
83 commission, as applicable, may refer such municipality to the
84 Municipal Election Accountability Board for a review hearing on such
85 municipality's procedures related to the conduct of any such election,
86 primary or referendum. Any such referral shall be accompanied by
87 supporting evidence, including, but not limited to, affidavits, written or
88 electronic correspondence and documented findings from an
89 investigation.

90 (2) Whenever a judge of the Superior Court is of the opinion that a
91 reasonable likelihood of irregularity or impropriety in the
92 administration of any election, primary or referendum in a municipality
93 exists, based on a matter before such court involving such municipality's
94 alleged violation of any provision of title 9 of the general statutes, such
95 judge may refer such municipality to the Municipal Election
96 Accountability Board for a review hearing on such municipality's
97 procedures related to the conduct of any such election, primary or
98 referendum. Any such referral shall be accompanied by supporting
99 evidence, including, but not limited to, any record developed during a
100 judicial proceeding.

101 (3) (A) Whenever a municipal clerk, registrar of voters or moderator
102 observes any act or omission that may present an impediment to the
103 timely and orderly administration of any duty required of a
104 municipality under title 9 of the general statutes, or (B) whenever the
105 chief executive officer of a municipality, based on a review of such
106 municipality's practices, identifies any such practice that may present
107 such an impediment, such municipal clerk, registrar of voters,
108 moderator or chief executive officer, as applicable, may refer such
109 municipality to the Municipal Election Accountability Board for a
110 review hearing on such municipality's procedures related to the conduct
111 of elections, primaries and referenda. Any such referral shall be
112 accompanied by supporting evidence, including, but not limited to,
113 affidavits, written or electronic correspondence, procedure manuals and

114 other guidance documents and logs of absentee ballot applications,
115 moderator's diaries or other contemporaneously-produced notes or
116 records.

117 (4) Whenever any citizen of the state has a good-faith belief that a
118 reasonable likelihood of irregularity or impropriety in the
119 administration of any election, primary or referendum in a municipality
120 exists, such citizen may file a report detailing such irregularity or
121 impropriety with the Municipal Election Accountability Board and
122 seeking a preliminary review of such municipality's procedures related
123 to the conduct of any such election, primary or referendum. Any such
124 report shall be accompanied by supporting evidence, including, but not
125 limited to, affidavits, written or electronic correspondence and
126 documented findings from an investigation. All submissions of such
127 supporting evidence shall be made under penalty of false statement.

128 (b) At the next regularly scheduled meeting of the Municipal Election
129 Accountability Board after the receipt of a citizen report under
130 subdivision (4) of subsection (a) of this section, the board shall hold a
131 preliminary review for the purpose of determining whether to hold a
132 review hearing under subsection (c) of this section. At such preliminary
133 review, the board shall vote to determine whether, if everything in the
134 citizen report is accurate, the reported municipality would be likely to
135 be designated for oversight in accordance with subsection (c) of this
136 section. In making such determination, the board shall consider (1) the
137 plausibility of the citizen report based on such report and supporting
138 evidence, (2) the nature and severity of the alleged irregularity or
139 impropriety, including whether any such irregularity or impropriety
140 would constitute a violation of the provisions of chapter 151 or 151a of
141 the general statutes, and (3) the frequency with which any such
142 irregularity or impropriety is alleged to have occurred in such reported
143 municipality. A preliminary review of a citizen report held under this
144 subsection shall not be considered a contested case under chapter 54 of
145 the general statutes.

146 (c) Immediately upon receipt of a referral under subdivisions (1) to
147 (3), inclusive, of subsection (a) of this section or an affirmative vote at a
148 preliminary review of a citizen report held under subsection (b) of this
149 section, the Municipal Election Accountability Board shall give notice of
150 such referral or citizen report to the referred municipality. Not later than
151 ten days after receipt of such notice, the referred municipality may
152 submit to the board a written response to such referral or citizen report.
153 Not later than forty-five days after receipt of such response or, if such
154 municipality does not submit such a written response, not later than
155 sixty days after the board gave notice of such referral or citizen report
156 to the referred municipality, the board shall hold a review hearing
157 during a regularly scheduled meeting of the board for the purpose of
158 presenting to such referred or reported municipality the evidence that
159 accompanied such referral or citizen report. The board may compel the
160 attendance of any person as a witness by subpoena issued by the board
161 and may compel the production for examination of any books and
162 papers that the board deems relevant to the matter in question. At such
163 review hearing, the chief executive officer, the corporation counsel or
164 any other duly authorized representative of such referred or reported
165 municipality shall have a right to respond to the evidence that
166 accompanied such referral or citizen report, including, but not limited
167 to, rebuttal of any fact alleged and confrontation of any witness. Not
168 later than the next regularly scheduled meeting after the review hearing,
169 the board shall vote to determine (1) whether to designate such referred
170 or reported municipality for oversight by the board in accordance with
171 the provisions of section 3 of this act, (2) if such oversight is deemed
172 necessary, the tier to which such municipality shall be designated, and
173 (3) if such oversight is deemed necessary, the length of time such
174 municipality shall be subject to such oversight. In making the
175 determination under subdivisions (1) to (3), inclusive, of this subsection,
176 the board shall consider: (A) The referred or reported municipality's
177 response, if any, to the evidence that accompanied such referral or
178 citizen report, (B) the nature and severity of the alleged irregularity or
179 impropriety, including whether any such irregularity or impropriety

180 constitutes a violation of the provisions of chapter 151 or 151a of the
181 general statutes, and (C) the frequency with which any such irregularity
182 or impropriety appears to have occurred in such referred or reported
183 municipality. The determination of the board under this subsection may
184 be appealed in accordance with the provisions of chapter 54 of the
185 general statutes. Any such appeal shall be privileged with respect to
186 assignment.

187 Sec. 3. (NEW) (*Effective January 1, 2027*) A referred municipality
188 designated by the Municipal Election Accountability Board as a:

189 (1) Tier I municipality shall be subject to oversight by the board
190 consisting of (A) development by such municipality of a plan to mitigate
191 the concerns that warranted such designation by the board, which shall
192 be submitted to the board for approval and modification as required by
193 the board, (B) mandatory training of election officials in election
194 administration procedures and best practices, conducted by the office of
195 the Secretary of the State or by a certified moderator, town clerk or
196 registrar of voters, or a combination thereof, selected by the Secretary of
197 the State, and (C) distribution by said office to such election officials of
198 instruction or training manuals or other resources for promoting best
199 practices in election administration.

200 (2) Tier II municipality shall be subject to oversight by the board
201 consisting of (A) the measures provided under subdivision (1) of this
202 section for a Tier I municipality, and (B) regular contact with the
203 municipality to ensure (i) compliance with the developed mitigation
204 plan and timely achievement of the benchmarks set forth in such
205 mitigation plan, (ii) attendance of election officials at all mandatory
206 training, and (iii) distribution of manuals or resources in accordance
207 with the provisions of subparagraph (C) of subdivision (1) of this
208 section.

209 (3) Tier III municipality shall be subject to oversight by the board
210 consisting of (A) the measures provided under subdivision (2) of this

211 section for a Tier II municipality, and (B) an election monitor appointed
 212 by the board (i) who shall be authorized to (I) conduct inspections,
 213 inquiries and investigations related to any duty or responsibility under
 214 title 9 of the general statutes to be carried out by any official of such
 215 municipality or appointee of such official, (II) have access to all records,
 216 data and material maintained by or available to any such official or
 217 appointee, and (III) immediately report to the Secretary of the State any
 218 irregularity or impropriety in the performance of any duty or
 219 responsibility described in subparagraph (B)(i)(I) of this subdivision,
 220 and (ii) who shall be provided, by such municipality, with any office
 221 space, supplies, equipment and services necessary to properly carry out
 222 such election monitor's duties and responsibilities.

223 (4) Tier IV municipality shall be subject to oversight by the board
 224 consisting of the complete administration by the board of any election,
 225 primary or referendum in such municipality, and all procedures related
 226 to the orderly conduct of any such election, primary or referendum,
 227 notwithstanding the provisions of (A) titles 7 and 9 of the general
 228 statutes, (B) any special act, and (C) any charter or home rule ordinance
 229 adopted pursuant to chapter 99 of the general statutes.

230 Sec. 4. (NEW) (*Effective from passage*) Not later than January 1, 2027,
 231 the Municipal Election Accountability Board shall adopt regulations, in
 232 accordance with the provisions of chapter 54 of the general statutes, as
 233 the board deems necessary to implement the provisions of sections 1 to
 234 3, inclusive, of this act.

This act shall take effect as follows and shall amend the following sections:

Section 1	<i>from passage</i>	New section
Sec. 2	<i>January 1, 2027</i>	New section
Sec. 3	<i>January 1, 2027</i>	New section
Sec. 4	<i>from passage</i>	New section

Statement of Purpose:

To establish a Municipal Election Accountability Board to exercise oversight of municipalities in the administration of their elections, primaries and referenda.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]